



Appeal Decision

Site visit made on 3 September 2026

by K E Down MA(Oxon) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6012591

Lukes, Radley Green Road, Willingale, Ongar, CM5 0QT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr R & Mrs J Owen against the decision of Epping Forest District Council.
 - The application Ref is EPF/0385/26.
 - The development proposed is the erection of a single storey detached garage and ancillary domestic store, front and rear extensions to existing attached garage and conversion to additional living accommodation. Relocation of existing vehicular access.
-

Decision

1. The appeal is dismissed.

Preliminary Matter

2. Since the application was determined and the appeal made, a revised National Planning Policy Framework (NPPF) has been published in August 2026. Although changes have been made, including to Green Belt policy, those that are relevant to this decision have not materially changed. I am therefore satisfied that no party will be prejudiced by my having regard to the latest version of the NPPF in reaching my decision.

Main Issues

3. The main issues are:
 - Whether the proposed development amounts to inappropriate development in the Green Belt, having regard to the NPPF, August 2026, and any relevant development plan policies;
 - The effect on the openness of the Green Belt;
 - The effect of the proposed development on the character and appearance of the host dwelling, the street scene and the surrounding area;
 - If the proposed development amounts to inappropriate development in the Green Belt, whether the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

Reasons

Whether inappropriate development in the Green Belt

4. The appeal dwelling is an older, traditional double fronted house on an extensive plot in open countryside. There is open agricultural land to the rear, one side and to the front on the opposite side of the public highway, a quiet country road. On the other side of the appeal site is a dwelling, one of a small, isolated cluster set around a road junction. The appeal dwelling is clearly visible from the public highway.
5. The NPPF identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The government attaches great importance to Green Belts, the essential features of which are their openness and permanence. The NPPF goes on to state, in Policy GB6, that development in the Green Belt is inappropriate unless it falls within one of the categories set out in Policy GB7. Inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Policy GB7 sets out that the reuse, extension, alteration or replacement of an existing building is not inappropriate provided that, in the case of extensions, it will not result in a disproportionate increase in the size, compared to the original building. In the case of the appeal building, this is defined in the NPPF as the dwelling as it existed on 1 July 1948. Policy DM4 of the Epping Forest District Local Plan 2011-2033 (LP), adopted 2023, accords with the NPPF in applying national Green Belt policy.
6. The existing dwelling has undergone extension in the past, including a porch, attached garage with loft store and further single storey store and a rear single storey extension. The rear elevation has a long catslide roof. The proposed two storey side extension would project forward of the existing garage, which would be incorporated into it, and have a front elevation on the same building line as the existing dwelling. It would be about half the width of the dwelling and its roof would have a ridge at the same height as the existing main ridge. The extension would project noticeably beyond the rear of the dwelling at two storeys. The proposed extension would overwhelm the existing dwelling, particularly when seen from the side and rear. Overall, it would appear as a very large and incongruous addition. Taking into account that the existing garage extension would be incorporated into the new extension, I nevertheless find that the proposed extension would result in a disproportionate increase in size, compared with the original building.
7. The Council suggests that the proposed extensions might amount to the redevelopment of previously developed land which is a category of development set out in Policy GB7 of the NPPF as potentially not inappropriate in the Green Belt. However, I agree with the Council that the detrimental effect on the openness of the Green Belt would be sufficient that this category would not apply.
8. The appellant suggests that compared with the size of the overall plot, which would remain mostly undeveloped, the increase in built development would be minor. However, the extension must be judged against the size of the original dwelling as it existed on 1 July 1948.
9. Turning to the proposed outbuilding, this would be set some distance from the dwelling and close to the side boundary of the plot with the open countryside which is marked by a hedge. Although single storey it would have a very extensive

footprint. Outbuildings may be considered as extensions where they would amount to a normal domestic adjunct to the dwelling. However, owing to the distance of separation from the host dwelling, the scale of the building and its proposed use which would be to accommodate machinery needed to operate a smallholding as well as for domestic storage and garaging, it would lack the degree of physical and functional association with and subordination to the host dwelling to be considered as an extension. The outbuilding would thus be a new building in the Green Belt which would not fall within any of the categories set out under policy GB7. It would therefore amount to inappropriate development.

10. I conclude that both the proposed extension and the proposed outbuilding would be inappropriate development in the Green Belt.

Openness of the Green Belt

11. As set out in the NPPF, openness is one of the essential characteristics of Green Belts. Openness has a spatial and visual aspect and its assessment is a matter of planning judgement. The front and side elevations of the proposed extension would be clearly visible from the public highway and would occupy currently open space in front of, above and to the rear of the existing garage. From the rear, the extension would be visible mainly from the extensive plot associated with the host dwelling. Nevertheless, its occupation of a substantial amount of space at the side and rear of the dwelling, including at first floor, would result in a substantial loss of openness.
12. Likewise, the proposed outbuilding would occupy land that is currently open and undeveloped. Whilst the proposed location is currently well screened from the public highway, the proposed new access which would be set close to the proposed outbuilding, whilst not in itself a matter of contention, would result in the outbuilding becoming much more visible from the highway.
13. Overall, the proposed development would therefore result in significant harm to both the spatial and visual openness of the Green Belt.

Character and appearance

14. The design of the proposed extension with no set down or set back from the front elevation of the existing dwelling and with the introduction of brick abutting the existing painted render would appear as a bulky and incongruous addition to the host dwelling. It would detract from the pleasant symmetry of the front elevation and visually replace the existing sympathetic and subservient garage and store. When seen from the side it would present as a significant expanse of brickwork, overwhelming the original side of the dwelling. From the rear the height and depth of the extension would make it a dominant and overbearing feature and the shallow pitched gable at first floor would be unsympathetic in the context of the steeper gables of the eastern flank elevation and existing rear dormer.
15. The proposed single storey outbuilding would be of a sympathetic design, incorporating open bays and barn doors and a timber clad finish. Nevertheless, its sheer scale and in particular its length would make it a dominant and incongruous feature in the landscape and in the context of the modest host dwelling. Although the existing hedge to the rear of the building could be enhanced to provide a dense visual screen, the building would be clearly visible from the public highway through the proposed access.

16. For these reasons, I conclude that both the proposed extension and the proposed outbuilding would have a materially detrimental effect on the character and appearance of the host dwelling, the street scene and the surrounding area. In consequence, they would conflict with LP Policy DM9 which, amongst other things, expects new development to be of a high quality design that contributes to the distinctive character of the local area and relates positively to its context in terms of height, form, scale, massing, detailing and materials. In particular, extensions should respect and/or complement the form, setting, period and detailing of the original building.

Other considerations

17. The appellants have explained that there is a need to provide additional living space for their family, including space for working from home and space potentially needed to accommodate older family members in the future. In addition, a large secure building is needed to store vehicles, equipment and valuable items, including those associated with operating a smallholding, with a recent burglary from an existing outbuilding further from the dwelling, cited as increasing the need.
18. However, it is not explained why so much additional living space is necessary. Moreover, whilst more living space may be needed in the future, I can only attach limited weight to this since the need may not occur. Secondly, it is not explained why such a large outbuilding is needed for domestic storage nor why the existing outbuilding could not be made more secure or a similar secure replacement provided in its place, to house equipment connected with the smallholding. Overall, I can therefore attach only modest weight to the appellants' need for more space as a consideration in favour of granting permission.
19. Conversely, I have found that the extensions and separate outbuilding would be inappropriate development in the Green Belt and that they would result in additional harm to the openness of the Green Belt. The NPPF makes clear that any harm to the Green Belt carries substantial weight. The development would also result in significant harm to the character and appearance of the host dwelling, the street scene and the surrounding area. Accordingly, the other considerations indicated above do not clearly outweigh the harm to the Green Belt and the other harms that I have found, and the very special circumstances needed to justify the development therefore do not exist. Overall, this would conflict with LP Policy DM4 and with national policy set out in Policies GB6 and GB7 of the NPPF, 2026.
20. For the reasons set out above, I conclude that the appeal should be dismissed.

KE Down
INSPECTOR